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IN THE CIRCUIT COURT OF THE FOURTH JUDICIAL CIRCUIT,
IN AND FOR DUVAL COUNTY, FLORIDA

STEFEN WYNN,

Plaintiff,

v. **Case No.: 23 CA 008801**

CITY OF NEPTUNE BEACH,

Defendant.
_____/

PLAINTIFF'S RESPONSES TO DEFENDANT'S
FIRST REQUEST FOR PRODUCTION

Plaintiff, STEFEN WYNN, by and through his undersigned counsel, hereby responds to Defendant's First Request for Production and states as follows:

1. All documents which support or document the amount of damages you claim as a result of the allegations in your Complaint.

   RESPONSE:
   There are no documents responsive to this request within Plaintiff's possession, custody, or control other than documents being produced in response to other requests herein.

2. All documents which support or document the amount of damages sustained from your inability or diminished ability to earn a living as a result of the allegations described in your Complaint.

   RESPONSE:
   There are no documents responsive to this request within Plaintiff's possession, custody, or control other than documents being produced in response to other requests herein.

3. All records of payments expended by you or on your behalf for any damages which you are claiming in this cause.

   RESPONSE:
   There are no documents responsive to this request within Plaintiff's possession, custody, or control.

4. Copies of your paychecks from any employer who you have worked for after leaving the employment of the City of Neptune Beach.

ACCEPTED: DUVAL COUNTY, JODY PHILLIPS, CLERK, 08/20/2024 09:18:10 AM

RESPONSE:
There are no documents responsive to this request within Plaintiff's possession, custody, or control.

5. Copies of all written or transcribed statements made or given by any individuals regarding your claims in this matter.

RESPONSE:
Objection, attorney/client and/or work product privileges.

6. Any and all documents not subject to attorney privilege or attorney work product which support your responses to the interrogatories served on you contemporaneously with this request for production.

RESPONSE:
None other than those documents provided in response to other requests herein are within Plaintiff's possession, custody, or control.

7. Any and all documents, computer discs, and/or electronically stored information which are not subject to attorney/client privilege or attorney work product which document the discrimination and/or civil rights violation you claim to have suffered as a result of the allegations contained in our most recent Complaint and/or your discrimination complaints and charges.

RESPONSE:
None other than those documents provided in response to other requests herein are within Plaintiff's possession, custody, or control.

8. All diaries, calendars, notes, memoranda, files, correspondence, statements, transcripts, audio or video recordings, photographs, computer files, and documents of every other kind or description which pertain to or describe any of the events described in your most recent Complaint.

RESPONSE:
Please see attached.

9. Any and all emails or documents that you downloaded before and when you left the City of Neptune Beach and retained for your personal records or delivered to your attorneys.

RESPONSE:
Objection, overly broad and not proportional to the needs of the case. With regard to documents which relate to this lawsuit: None other than those documents provided in response to other requests herein are within Plaintiff's possession, custody, or control.

10. A copy of your personal income tax returns and W-2 forms, and all records of income tax from any source, whether taxable or untaxable and whether reported on your tax returns or not, for the two years preceding your termination as alleged in your most recent Complaint, and for each year after your termination, together with all documents which reflect or relate to any income received on or earned to date.

RESPONSE:
Objection, overly broad, not relevant, and not proportional to the needs of the case. With regard to Plaintiff's tax returns for the last year of his employment with the City (2023) through the present, please see attached.

11. Any and all documents which document income that you received after leaving your employment with the City of Neptune Beach.

RESPONSE:
None other than those documents provided in response to other requests herein are within Plaintiff's possession, custody, or control.

12. Any and all documentation reflecting your application(s) and attempts to gain employment after leaving the City of Neptune Beach to present. This request includes all records reflecting your efforts to locate and obtain employment since the termination of your employment with the City of Neptune Beach to the present, including but not limited to employment applications, resumes, correspondence, notes, memoranda, documents from any prospective employers from which employment was sought regarding interviews, calendars showing when you were interviewed, applications, offers of employment, and records reflecting offers or rejections of employment.

RESPONSE:
Please see attached.

13. Any and all documents relating to any jobs that you were offered after you left the employment of the City of Neptune Beach.

RESPONSE:
None other than those documents provided in response to request number 12 are within Plaintiff's possession, custody, or control.

14. A release for Defendant to obtain Plaintiff's medical records including mental health records so that Defendant may serve the release directly on the Plaintiff's healthcare providers and mental health counselors for the purpose of obtaining records relevant to the Plaintiff's claim of emotional pain and suffering. (Suggested release is attached).

RESPONSE:
Plaintiff objects to the signing of any release as court rules do not require Plaintiff to create a document by executing a release in order to respond to a request for production. Objection, such documents are not relevant nor proportional to the needs of the case, as

Plaintiff has not received medical treatment for his emotional damages and this request serves no purpose other than to intimidate, harass, or embarrass Plaintiff.

15. Any and all documents: (a) given to or received from the State of Florida Agency for Workforce Innovation Unemployment Compensation, the Florida Unemployment Compensation Appeals or any other local, state or federal agency, office, department, or official on or since January of 2023; and/or (b) constituting, discussing or otherwise pertaining in any way to correspondence or other written or oral communications from the date of your termination of employment with the City of Neptune Beach to the present, between Plaintiff and that Department, Board, or other local, state or federal agency, office, department, or official, which in either case, relate to or pertain in any manner to claims for unemployment benefits received and/or to any matters encompassed by your most recent Complaint.

RESPONSE:
There are no documents responsive to this request within Plaintiff's possession, custody, or control.

16. All documents relating to or referring to any internal complaint or grievance filed by Plaintiff against Defendant or its employees pertaining to or relating to discrimination and/or any other matters encompassed by your most recent Complaint.

RESPONSE:
None other than those documents provided in response to other requests herein are within Plaintiff's possession, custody, or control.

17. All records relating to medical, psychiatric or psychological treatment or mental health counseling you received from 2019 through the date of the response to this request.

RESPONSE:

Objection, such documents are not relevant nor proportional to the needs of the case, as Plaintiff has not received medical treatment for his emotional damages and this request serves no purpose other than to intimidate, harass, or embarrass Plaintiff.

18. Any and all documents that refer or relate to any communication(s) which Plaintiff(s) had with any person concerning: (a) the fact that plaintiff is suing Defendant; or (b) Plaintiff's claim or belief that Defendant has engaged in any unlawful conduct.

RESPONSE:
Objection –this request possibly seeks information protected by work product and attorney-client privileges. Subject to and without waiving this objection, there are no documents responsive to this request in Plaintiff's possession, custody, or control.

19. Any and all documents which in any way discuss, relate or otherwise pertain to any other lawsuits filed by Plaintiff, or filed by others on Plaintiff's behalf, or any complaints,

charges or grievances made by Plaintiff, or made by others on Plaintiff's behalf against any person and/or business entity.

RESPONSE:
Objection, not relevant nor proportional to the needs of the case. Subject to and without waiving this objection, there are no documents responsive to this request in Plaintiff's possession, custody, or control.

20. Any and all documents you provided to any individual or agency relating to their investigation into Neptune Beach's operations.

RESPONSE:
There are no documents responsive to this request within Plaintiff's possession, custody, or control.

21. Any and all documents you provided to any individual or agency relating to your claims that you reported any suspected violation that falls under Fla. Stat. 112.3187.

RESPONSE:
Please see attached.

22. Provide a copy of front and back of your driver's license.

RESPONSE:
Please see attached.

23. Provide a signed blank HIPAA authorization.

RESPONSE:
Plaintiff objects to the signing of any release as court rules do not require Plaintiff to create a document by executing a release in order to respond to a request for production. Objection, such documents are not relevant nor proportional to the needs of the case, as Plaintiff has not received medical treatment for his emotional damages and this request serves no purpose other than to intimidate, harass, or embarrass Plaintiff.

24. Provide a signed Social Security authorization for earnings.

RESPONSE:
Plaintiff objects to the signing of any release as court rules do not require Plaintiff to create a document by executing a release in order to respond to a request for production. Objection, such documents are overly broad and not proportional to the needs of the case. This request serves no purpose other than to intimidate, harass, or embarrass Plaintiff.

Respectfully submitted,

/s/ Marie A. Mattox
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ATTORNEY FOR PLAINTIFF

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been electronically filed with the Clerk via the Florida Courts e-Filing Portal only this 3rd day of August 2023, which will send Notification of Electronic Filing to all counsel of record to:

MARKS GRAY, P.A.
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/s/ Marie A. Mattox
Marie A. Mattox